No.

IN THE COURT OF CRIMINAL APPEALS OF ALABAMA

EX PARTE BURTON WHEELER NEWSOME,
Petitioner.

(In re: State of Alabama v. Burton Wheeler Newsome, Defendant, Circuit Court of Shelby County, Case Number CC 2015-000121)

TO THE HONORABLE H. L. CONWILL, CIRCUIT JUDGE AND THE HONORABLE MARY H. HARRIS, CIRCUIT CLERK

PETITION OF BURTON WHEELER NEWSOME FOR THE WRIT OF CERTIORARI, OR IN THE ALTERNATIVE, FOR THE WRIT OF MANDAMUS

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INTRODUCTION

BURTON WHEELER NEWSOME HEREBY PETITIONS this court for the writ of certiorari and the writ of mandamus to Circuit Judge H. L. Conwill and Circuit Clerk Mary H. Harris of Shelby County. Newsome seeks an order or writ directing Judge Conwill to vacate his order dated June 8, 2016, which set aside an expungement that Judge Dan Reeves had granted to Newsome on September 10, 2015.

Newsome also seeks orders or writs directing Judge Conwill and Clerk Harris to deliver to this court and serve on his attorney authenticated copies of all records in their possession or control concerning case CC 2015-000121 (including records showing the docket fees or filing fees paid). Newsome requests that the records be filed and served separately by Judge Conwill and Clerk Harris so the court can determine which documents are part of the official records of the Circuit Clerk and which are not.

STATEMENT OF JURISDICTION

Newsome seeks review of an order dated June 8, 2016. This petition is filed within forty-two days of the order and is therefore timely. Ala. R. App. P. 21(a)(3); Ala. R. App. P. 4(a)(1).

This court has original appellate and supervisory jurisdiction of expungements. *Bell v. State*, CR-15-0618, (Ala. Crim. App. April 29, 2016); *see* Ala. Code § 12-3-8 (1975). This is the correct court to review Newsome's case.

A Petition for a Writ of Certiorari is the proper method to compel a court or public official to deliver an authenticated record to an appellate court for review. *Levins v. State*, CR-15-612, slip op. at 6 (Ala. Crim. App. April 29, 2016); *Ex parte Hennies*, 33 Ala. App. 377, 34 So. 2d 22, 24 (1948). It is also the proper method to review an order denying a petition for expungement. *Bell v. State*, CR-15-0618 (Ala. Crim. App. April 29, 2016); *Levins v. State*, CR-15-612 (Ala. Crim. App. April 29, 2016); Ala. Code § 15-27-5(d). If it is not void, the order June 8, 2016, is a final order denying Newsome's petition for expungement.

Newsome contends that the order dated June 8, 2016, is void. Mandamus is a proper method to review an order that is void. *Ex parte Dowling*, 477 So. 2d 400, 402 (Ala. 1985); *Ex parte DiGeronimo*, Civ. No. 2140611 (Ala. Civ. App. Oct. 9, 2015); *Ex parte State Dept. of Human Resources*, 47 So. 3d 823 (Ala. Civ. App. 2010). Consequently, Newsome also petitions for the writ of mandamus.

STATEMENT OF THE FACTS

1. On January 14, 2013, John Franklin Bullock (hereinafter "Bullock") filed a criminal complaint against the Petitioner, Burton Wheeler Newsome (hereinafter "Newsome") for menacing in the District Court of Shelby County. (Tab 10, at 90).

2. On November 12, 2013, the District Court entered a Form "DISMISSAL & RELEASE ORDER." The Order contained a "Release" of Newsome's "civil and criminal claims stemming directly or indirectly

from th[e] case." The order was signed by the judge, Newsome, the Assistant District Attorney, and Bullock (Tab 2, at 4).

3. The Form Order contained different paragraphs to be checked for different dispositions. The paragraph checked "[c]ontinued [the case] until 4/01/14, then to be dismissed with prejudice, provided that the defendant have no further incidents/arrests." The underlined words were handwritten in blanks on the Form (Tab 2, at 4).

4. A different paragraph would have "placed [the] case on the Administrative docket until ____." This is a statutory requirement when the defendant signs a deferred-prosecution agreement. Ala. Code § 12-17-226.6(d). This paragraph was not checked. Newsome did not sign a deferred-prosecution agreement. (Tab 15, at 61).

5. On April 4, 2014, the criminal case was dismissed with prejudice. The order of dismissal contained "no terms or conditions"; it was unqualified (Tab 2, at 3).

6. On January 14, 2015, Newsome filed suit in the Circuit Court of Jefferson County against John Bullock, Claiborne Seier (hereinafter "Seier"), and others (Tab 10, at 23-3).

7. He alleged that Bullock and Seier had staged the events that led to his arrest for the purpose of framing him on a false charge of menacing.

8. On February 13, 2015, Seier filed a motion to dismiss the civil suit based on the DISMISSAL & RELEASE ORDER (Tab 10, at 39). The other defendants filed similar motions. (Tab 10, at 43-53).

9. On February 19, 2015, Newsome filed a petition in the Circuit Court of Shelby County to expunge the records of his prosecution for menacing. (Tab 2; Tab 10, at 54).

10. Newsome filed his petition on Uniform Judicial System Form CR-65 7/2014. He checked blanks certifying that he had been charged with "a misdemeanor criminal offense" and that "the charge was dismissed with prejudice." (Tab 2, at 1).

11. The Form contained a paragraph to check if the petitioner had "complet[ed] ... any court-approved deferred prosecution program." Newsome did not check that paragraph; it applied to "Non-violent Felon[ies] Only." (Tab 2, at 1).

12. The case was assigned to Judge Dan Reeves. Judge Reeves knew that Newsome had signed the DISMISSAL & RELEASE ORDER; Newsome attached it to his petition. (Tab 2, at 4).

13. The attorneys for Bullock and Seier knew about Newsome's Expungement Petition by April 21, 2015. Newsome served them electronically[1] with discovery responses containing his petition that day (Tab 10, at 56-57, 102-03); *see* Interrogatory answer 28, tab 10, at 65).

14. On August 20, 2015, Bullock filed an objection to Newsome's Petition for Expungement. He alleged that "Newsome ha[d] instituted ... legal action against [him] in clear contravention of his agreement." (Tab 3, at 1; Tab 10, at 121).

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[1]Ala. R. Civ. P. 5(d) ("All discovery material may be served electronically using the court's electronic filing system.").

15. On August 31, 2015, Judge Reeves held a hearing on Newsome's Petition. Bullock and his attorney appeared, and Bullock's attorney argued that the petition should be denied "because [Newsome] had filed a civil action against Mr. Bullock" and that Mr. Bullock wanted "to use the expunged documents in the civil case." (Tab 4, at 1).

16. The State filed an objection during the hearing, alleging that a charge of menacing was not subject to expungement because menacing is a "violent crime." (Tab 10, at 125). Based on this objection, the court denied Newsome's petition. (Tab 10, at 126).

17. The Circuit Court of Jefferson County also dismissed Newsome's civil case the same day. (Tab 10, at 125-28).

18. On September 2, 2015, Newsome filed a post-trial motion in the expungement case. He argued that (a) the misdemeanor of menacing is not excluded by the expungement statute, (b) that neither the State nor the alleged victim had filed a timely objection to his petition for expungement, and (c) that he had satisfied the statutory requirements for expungement. (Tab 10, at 131-150).

19. Bullock filed an objection (Tab 10, at 151-58), but Judge Reeves granted Newsome's motion. He entered an order of expungement on September 10, 2015, finding that "Newsome ha[d] satisfied the requirements for expungement under section 15-27-1 et seq." (Tab 5; Tab 10, at 159-60).

20. The expungement case (CC 2015-000121) was thereafter removed from the State Judicial Information System (SJIS); a search

for case CC 2015-000121 reveals nothing. (Tab 15, pages 76-77, ¶¶ 74-75; Tab 15, page 114, ¶ 4).

21. On September 28, 2015, Newsome filed a post-trial motion in his civil case (Tab 10, at 161-213), and he attached the expungement to his motion. He argued that the release was "not a lawful basis" for dismissing his civil case. (Tab 10, at 166, 230-31).

22. Bullock and Seier knew then that this was Newsome's contention; they were served electronically with his motion the same day. (Tab 10, at 161, 231).

23. The thirty days for filing post-trial motions in the expungement case expired on October 13, 2015;[2] no one filed such a motion.

24. The forty-two days for filing a petition for a writ of certiorari expired on October 22, 2015;[3] no one filed such a petition.

25. On December 16, 2015, the Circuit Court of Jefferson County granted Newsome's rule 59 motion and reinstated his civil suit against all parties (Tab 10, at 232-33).

26. On January 19, 2016, Bullock filed a "Motion to Use Contents of Expunged File." The Motion bore the caption of Newsome's expungement case. Bullock asked the court to allow him to use the expunged file in Newsome's civil case. (Tab 6).

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[2]The thirtieth day fell on Saturday October 10, 2015, and Monday October 12, 2015, was a legal holiday (Columbus Day). By application of rule 6(a), the last day for filing post-trial motions was Tuesday, October 13, 2015.

[3]*See Bell v. State*, CR-15-0618, slip op. at 4-5 (Ala. Crim. App. April 29, 2016); Ala. R. App. P. 4(a).

27. On January 25, 2016, Newsome attempted to file a response to Bullock's Motion, but the clerk refused to accept the document for filing. She told Newsome's counsel "that nothing ... could be filed in that case because it had been expunged."[4] Newsome's counsel delivered the document to Judge Reeves' office. (Tab 7).

28. Judge Reeves did not act on Bullock's Motion, and he retired effective March 1, 2016.

29. Judge Alvis was appointed to replace Judge Reeves effective May 1, 2016.[5] Yet, on May 3, 2016, Judge Conwill's Judicial Assistant distributed an email setting a hearing on Bullock's Motion for June 3, 2016 (Tab 8). The "order" was not stamped "filed" by the Clerk, and it was not entered in the SJIS as the case no longer existed.

30. Judge Conwill had never previously presided over Newsome's expungement case, and Newsome is not aware of his authority to preside.

31. On May 19, 2016, Seier "filed" a "Petition to Set Aside [Newsome's] Expungement." The Petition bore the caption of Newsome's expungement case. Seier alleged that Newsome's expungement had been "erroneously granted by a previous judge of this Court based on false pretenses." (Tab 9, at 1).

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[4]Rule 5(e), Ala. R. Civ. P., requires the Circuit Clerk to accept documents tendered for filing.

[5]This court may take judicial notice of the retirement of Judge Reeves and the appointment of his successor. *Ex parte Bush*, 270 Ala. 62, 116 So. 2d 382, 383 (1959).

32. He alleged that Newsome had signed a "Deferred Prosecution and Release Agreement," which he purported to attach as "Exhibit 1." (Tab 9, page 2, ¶ 3). The document attached was the DISMISSAL & RELEASE ORDER, but the title of the document was covered by an electronic filing stamp (Tab 9, at 7). The unobscured title appears at Tab 10, at 98.

33. Seier also alleged that Newsome had "pled guilty,"[6] received a "criminal conviction,"[7] and been "sentenc[ed]."[8] Seier attached no evidence to support these allegations, and they were false.

34. He asserted that "Newsome [had] submitted information ... that all terms and conditions of his underlying agreement and sentence had been completed," but he "was in direct violation of the Deferred Prosecution and Release Agreement" because he was suing Bullock. (Tab 9, page 4, ¶ 9).

35. On June 1, 2016, Newsome attempted to file responses to Bullock's Motion and Seier's Petition with the Circuit Clerk, but the clerk again refused to accept the documents. She again told Newsome's counsel "that nothing ... could be filed in that case because it had been expunged ..." Newsome's counsel delivered the documents to Judge Conwill's Judicial Assistant, Bonita Davidson. (Tabs 10-11).

36. On June 2, 2016, Newsome's counsel also delivered a "Motion to Expunge" to Judge Conwill's Judicial Assistant. (Tab 12). He argued

[6]Tab 9, page 2, ¶ 2.
[7]Tab 9, page 5, ¶ 10.
[8]Tab 9, page 2, ¶ 3.

that "all pleading filed in this case should be expunged because they had been filed after the deadline for filing post-trial motions." Judge Conwill held a hearing on June 3, 2016, but received no testimony. (Tab 13).

37. Newsome was the only person who had submitted an affidavit (Tab 10, at 123, 217-19); the only other evidence affidavits before Judge Conwill consisted of pleadings and motions delivered to his office before the hearing. (Tabs 6-7, 9-12).

38. Although Bullock had not filed a motion or petition to set aside Newsome's expungement, he "join[ed] in" Seier's Petition during the hearing. (Tab 13, at 10).

39. At the conclusion of the hearing, Judge Conwill indicated his intent to do what he thought was "right" - even though "it may be reversed." (Tab 13, at 22-23).

40. He then instructed the attorneys for Bullock and Seier to prepare an order, but gave them no instructions what to put in the order. (Tab 13, at 24).

41. On June 9, 2016, Newsome's counsel received an order by email signed by Judge Conwill. The order "set aside[]" Newsome's expungement and granted Bullock and Seier "leave to use the contents of Defendant Newsome's charge, plea and disposition." (Tab 1, at 1). The order further stated,

> 22. On the facts before the Court, it is clear that Defendant Newsome did not satisfy Section 15-27-12 (Prerequisites to expungement) as to all terms and conditions of the underlying deferred prosecution agreement were not satisfied in full at the time that the Petition

> for Expungement was filed. To the extent that the Defendant represented otherwise to this Court, said representations were necessarily false by virtue of his pending civil action against, among other persons, the Victim of the underlying offense.
>
> 23. The Court hereby determines that the Defendant's false representation that he had fulfilled all terms and conditions of the underlying deferred prosecution agreement when he was concurrently prosecuting a civil action against the victim in violation of the Release and Dismissal Order of the District Court of Shelby County constitutes "false pretenses" within the meaning of Ala. Code 1975 § 15-27-17. (Tab 1, at 5-6).

42. The order was not stamped "filed," and it did not bear an insignia of electronic filing.

43. On Friday, June 10, 2016, Newsome's counsel attempted to inspect the court file concerning the case, but the Circuit Clerk refused to allow him to do so.[9]

44. On Tuesday, June 14, 2016, Newsome's office manager, Jennifer Choi, attempted to obtain copies of the pleadings in the case, but the clerk refused to allow her to do so, stating, "[A]ll pleadings were given to the presiding judge [is] keeping them in his office."[10] (Tab 15, at 76).

45. On June 28, 2016, Ms. Choi attempted to file a post-trial motion for Newsome, but the Deputy Circuit Clerk refused to accept the Motion. She told Ms. Choi, "I can't personally take anything on it [CC 2015-000121] because it doesn't exist." (Tab 15, page 114, ¶ 4).

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[9]Section 12-17-94(a)(3) requires the Circuit Clerk to allow parties to inspect the file.

[10]Section 12-17-94(a)(3) requires the Circuit Clerk to "keep" the file.

46. Newsome emailed Ms. Davidson, the Judge's assistant, asking, "How am I suppose[d] to file this in for the Judge's consideration?" (Tab 14, at 1-2).

47. Ms. Davidson informed Newsome that "the Clerk has not been taking other documents. They are brought directly to me." (Tab 14, at 1).

48. Newsome informed Ms. Davidson that the clerk's office had filed documents for Seier and Bullock; Ms. Davidson responded, "[W]e have those documents, the Clerk does not have them." (Tab 14, at 1).

49. Newsome and Ms. Choi then delivered Newsome's rule 59 motion to Ms. Davidson, who marked the document "received 6/28/16." (Tab 15, at 1; Tab 15, page 115, ¶ 6).

50. Newsome's case does not appear in the SJIS; Newsome has been denied the right to file pleadings in his case; he has been denied the right to inspect the records in his case; and he has been denied the right to obtain copies of the records in his case. Newsome has received no notice of any action taken by Judge Conwill on his post-trial motion, which he delivered to Judge Conwill's assistant on June 28, 2016.

STATEMENT OF THE ISSUES

1. Is the order dated June 8, 2016, void because Case CC 2015-000121 did not exist when Bullock filed his motion, when Seier filed his petition, and when Judge Conwill signed the Order?

2. Is the order void because it was not "entered" in the SJIS as required by rule 58(c)?

3. Is the order void because it granted relief to Bullock and Seier, who were not parties to the case?

4. Is the order void because neither Bullock nor Seier paid a filing fee to intervene in the case?

5. Is the order void because neither Seier nor Bullock had standing to challenge Newsome's expungement?

6. Is the order void because the motion and petition Judge Conwill granted were both filed more than thirty days after the expungement was entered?

7. Is the order void because the motion and petition Judge Conwill granted were both filed more than four months after the expungement was entered?

8. Did Judge Conwill err in vacating Newsome's expungement without a transcript of the proceedings before Judge Reeves?

9. Did Judge Conwill err in holding that Newsome obtained his expungement based on false pretenses – when the facts constituting the "alleged false pretenses" were known to Judge Reeves when he granted the expungement?

10. Did Judge Conwill err in failing to hold that Bullock's Motion and Seier's Petition were barred by res judicata?

11. Did Judge Conwill err in holding that Newsome had falsely sworn that he had "fulfilled all terms and conditions of the underlying deferred prosecution agreement"?

12. Did Judge Conwill err in holding that the release "is valid"?

STATEMENT CONCERNING PROCEDURAL RULES

Neither the Rules of Criminal Procedure nor the Rules of Civil Procedure mentions "expungements," and the Expungement Act does not specify what procedural rules apply. In *Ex parte Teasley*, 967 So. 2d 732 (Ala. Crim. App. 2007), this court held, "[Expungement] is in the nature of a civil proceeding." The Rules of Civil Procedure apply "in all actions of a civil nature." Ala. R. Civ. P. 1(a). Thus, the proceedings in this case were governed by the Rules of Civil Procedure. *People v. Lewis*, 356 Ill. Dec. 602, 961 N.E.2d 1237, 1239 (Ill. App. 5 Dist. 2011); *Tex. Dep't Pub. Safety v. Mendoza*, 952 S.W.2d 560, 562 (Tex. App.—San Antonio 1997); *State v. Hutchen*, 946 N.E.2d 270, 191 Ohio App. 3d 388 (Ohio App. 2 Dist. 2010).

STATEMENT OF THE STANDARD OF REVIEW

The standard of review applicable to a Petition for a Writ of Certiorari is as follows:

> "The certiorari standard of review is whether the law was properly applied and whether the ruling was supported by any legal evidence." *Ex parte United Steelworkers of America, Local Union 7533*, 536 So. 2d 32, 33 (Ala. 1988), *cert. denied*, 490 U.S. 1046, 109 S.Ct. 1954, 104 L.Ed.2d 423 (1989) (emphasis added). "[I]f there is any legal evidence to support the decision of the lower tribunal, such is conclusive on the reviewing court." *Sanders v. City of Dothan*, 642 So. 2d 437, 440 (Ala. 1994).
>
> "[W]hen proceedings of a lower tribunal are reviewed on common-law writ of certiorari the tribunal's order should be sustained if it is supported by any substantial or legal evidence. In the context of common law writ of certiorari

> proceedings, substantial evidence means legal evidence. Thus, there must be some evidence presented to the lower tribunal which is competent and legal under the general rules of evidence..." *State Personnel Board v. State Department of Mental Health & Mental Retardation*, 694 So. 2d 1367 (Ala. Civ. App. 1996).

The standard of review applicable to a Petition for a Writ of Mandamus is as follows:

> The writ of mandamus is a drastic and extraordinary writ, to be issued only when there is: 1) a clear legal right in the petitioner to the order sought; 2) an imperative duty upon the respondent to perform, accompanied by a refusal to do so; 3) the lack of another adequate remedy; and 4) properly invoked jurisdiction of the court. *Ex parte State*, 187 So. 3d 1122, 1124 (Ala. 2015) (internal quotation marks omitted).

REASONS WHY THE WRIT SHOULD ISSUE

I. The Order Is Void because Case CC 2015-000121 Did Not Exist when Bullock Filed His Motion, when Seier Filed His Petition, and when Judge Conwill Signed the Order.

The case was removed from the State Judicial Information System (SJIS) when Newsome's petition was granted. (Tab 15, at 74-75). *See* Ala. Code § 15-27-6(a); Ala. Code § 15-27-9(3). Case CC 2015-000121 then ceased to exist. (Tab 15, at 114, ¶ 4). Thus, the case did not exist when Bullock "filed" his motion and Seier "filed" his petition - or when Judge Conwill signed the order.

If Bullock or Seier wished to challenge Newsome's expungement, they were required to file a new case. *See Ex parte State*, 187 So. 3d 1122, 1128 (Ala. 2015). The order dated June 8, 2016, is void because it was extrajudicial - it was not a part of any existing case.

II. The Order Is Void because It Was Not Entered in the SJIS as Required by Rule 58(c).

Under rule 58(c), Ala. R. Civ. P., an order is not valid unless it is entered in the SJIS. The order does not bear an insignia of electronic filing. (Tab 1). Because the case had been removed from the SJIS, the order was not entered in the SJIS. "[B]ecause it was not entered in the SJIS, the ... order did not constitute a valid order or judgment." *J.K. v. State Department of Human Resources*, 103 So. 3d 807, 810 (Ala. Civ. App. 2012).

III. The Order Is Void because It Granted Relief to Bullock and Seier, Who Were Not Parties.

The order describes Seier as "a non-party," and neither Bullock nor Seier is listed in the caption to any order or pleading. *See* Ala. R. Civ. P. 10(a). A court may not grant relief to a non-party. *Cf.* Ala. R. Civ. P. 60(b) ("the court may relieve a party ... from a final judgment"). Consequently, the court lacked subject-matter jurisdiction to grant Bullock's Motion or Seier's Petition; they were not parties. "The ... order was a nullity." *Penick v. Roberts*, Nos. 214067, 2140581 (Ala. Civ. App. Sept. 18, 2015) (vacating order granting relief to non-party).

IV. The Order Is Void because Neither Bullock nor Seier Paid a Filing Fee to Intervene.

If Bullock or Seier had filed a Motion to Intervene, they would have been required to pay a filing fee. Ala. Code § 12-19-71(a)(9). If they had filed a new action and received a new case number, they would have been required to pay a filing fee. *See Faulkner v. Hays*, 160 So. 2d

329, 335 (Ala. Civ. App. 2014) ("The payment of a filing fee commences an independent action."); *see* Ala. R. Jud. Admin. 7. They did neither, and as a result, the court did not acquire jurisdiction of their motion and petition. "[A]bsent the payment of the filing fee ... the trial court acquires no subject-matter jurisdiction." *Ex parte Courtyard Citiflats*, No. 1140264 (Ala. June 12, 2015); *Hetzel v. Johnson*, 100 So. 3d 1056, 1057 (Ala. Crim. App. 2012) ("for jurisdictional prerequisite of the payment of the filing fee ... was not met in this case").

V. The Order Is Void because Neither Seier nor Bullock Had Standing to Challenge Newsome's Expungement.

"When a party without standing purports to commence an action, the trial court acquires no subject-matter jurisdiction." *State v. Property at 2018 Rainbow Drive*, 740 So. 2d 1025, 1028 (Ala. 1999). Judge Conwill invoked three grounds to vacate Newsome's expungement, but none of those grounds is sufficient.

(a) Seier lacked standing to challenge Newsome's expungement.

(1) Seier lacked a personal interest in Newsome's expungement. "Standing is the requisite personal interest that must exist at the commencement of the litigation." *Cadle Co. v. Shabani*, 4 So. 3d 460, 462-63 (Ala. 2008). "[A] litigant may not claim standing to assert the rights of a third party." *Ex parte Izundu*, 568 So. 2d 771, 772 (Ala. 1990). Seier did not sign the DISMISSAL & RELEASE ORDER (Tab 2, at 4), and he did not allege that he was an intended beneficiary of the order. Instead, he cited Newsome's suit against Bullock as the basis for setting

aside the expungement (Tab 9, page 4, ¶ 9). Seier lacked standing to assert the alleged injury to Bullock.

(2) Seier had no right to notice of Newsome's Petition for Expungement. The only entities with standing to attack an expungement are the entities who had a statutory right to notice of the expungement petition. *Ein v. Commonwealth*, 246 Va. 396, 436 S.E.2d 610 (1993) (defendants in related civil suit lacked standing); *Pennsylvania State Police v. Izbicki*, 785 A.2d 166 (Pa. Commw. Ct. 2001); *Hunt v. Pennsylvania State Police of Commonwealth*, 983 A.2d 627 (Pa. 2009); *State v. Taylor*, 146 So. 3d 862, 865 (La. App. 4 Cir. 2014). Under section 15-27-3(c), the only entities with a statutory right to notice were "the district attorney, the law enforcement agency, and [the] clerk of [the] court ..." Seier had no statutory right to notice; as a result, he had no standing.

(b) Bullock lacked standing to challenge Newsome's expungement. As proposed, the Expungement Act granted the victim an absolute right to notice of an expungement petition. Sen. Bill 108-148758-1, § 4(b) (Jan 13, 2014) (Tab 15, at 107). As enacted, the bill removed the victim's absolute right and substituted notice at the district attorney's discretion - and then only for certain felonies: "The district attorney ... may make reasonable efforts to notify the victim if the petition has been filed seeking an expungement under ... paragraph a. of subdivision (4) of Section 15-27-2." Ala. Code § 15-27-3(c) (1975).

Newsome's Petition was filed under 15-27-1(a)(1). It was NOT FILED under section 15-27-2(a)(4); that section applies only to felonies. Bullock had no statutory right to notice. As a result, he had no standing to attack Newsome's expungement after it was granted. The court "acquire[d] no subject-matter jurisdiction" from Bullock. *State v. Property at 2018 Rainbow Drive*, 740 So. 2d at 1028.

(c) Even if Bullock had standing, his joinder in Seier's petition did not "cure" Seier's lack of standing. Judge Conwill acknowledged Seier's "questionable standing," but he held that Bullock's joinder in Seier's petition gave him jurisdiction to grant the relief Seier had requested. This was incorrect. "The jurisdictional defect resulting from the plaintiff's lack of standing cannot be cured by amending the complaint to add a party having standing." *State v. Property at 2018 Rainbow Drive*, 740 So. 2d 1025, 1028 (Ala. 1999); *Cadle Co. v. Shabani*, 4 So. 3d 460, 462-63 (Ala. 2008).

(d) Judge Conwill lacked jurisdiction to vacate the expungement on his own motion. Judge Conwill also relied on his "obligat[ion] to investigate and act." "[A] trial court has no jurisdiction to modify or amend a final order *sua sponte* more than 30 days after the judgment ..." *Casey v. McConnell*, 975 So. 2d 384, 389 (Ala. Civ. App. 2007); *see George v. Sims*, 888 So. 2d 1224, 1227 (Ala. 2004); Ala. R. Civ. P. 59(d). Consequently, Judge Conwill had no jurisdiction "to investigate and act" on June 8, 2016. "[His] determination ... was made *sua sponte* at a point

when [he] had no jurisdiction to act." *Ex parte DiGeronimo*, No. 2140611 (Ala. Civ. App. Oct. 9, 2015).

VI. The Order Is Void because the Motion and Petition Judge Conwill Granted Were Filed More Than Thirty Days after the Expungement.

The expungement was entered on September 10, 2015. (Tab 5). Bullock filed his motion on January 19, 2016 (Tab 6), and Seier's filed his petition on May 19, 2016 (Tab 9). This was far too late. A trial court has no jurisdiction to grant a post-trial motion filed more than thirty days after judgment. *SSC Selma Operating Company, LLC v. Gordon*, 56 So. 3d 598, 601 (Ala. 2010); *Evans v. State*, 722 So. 2d 778, 780 (Ala. Crim. App. 1997). Judge Conwill held that Bullock's Motion and Seier's Petition were not subject to any time limits (Tab 1, page 7, ¶ 26). Courts in other states have held that motions seeking to modify or set aside expungements are subject to the same time limits as other post-trial motions. *People v. Holum*, 166 Ill. App. 3d 658, 662, 520 N.E.2d 419, 421 (1988) ("[T]he State, by failing to challenge or appeal the order within 30 days, lost its opportunity to attack the expungement order."); *Ein v. Commonwealth*, 246 Va. 396, 401, 436 S.E.2d 610, 613 (1993) ("The trial court did not have jurisdiction to vacate the expungement order."); *Commonwealth v. Balboni*, 419 Mass. 42, 642 N.E.2d 576, 576-77 (1994) ("the limitations period for filing such motions is the same as the time period allowed for appeal.").

The expungement act does not create a procedure for modifying an expungement more than thirty days after it is granted. As proposed,

the act authorized a court to allow the use of expunged documents in other litigation "subject to the Alabama Rules of Evidence." Sen. Bill 108-148758-1, § 8(d) (Jan 13, 2014) (Tab 15, at 111-12). This provision did not become law. Under the bill as enacted, a court may allow the use of expunged documents in only one instance. "[A] government regulatory or licensing agency, utility[,] ... Bank or other financial institution shall have the right to inspect the expunged records after filing notice with the court." Ala. Code § 15-27-6(b). The court may issue an "order" allowing these entities to "use" the records, but neither Bullock nor Seier falls within this provision. Section 15-27-7(a) expressly prohibits the use of expunged documents in civil actions such as Newsome's.[11] "[Expunged] records may not be used for any non-criminal justice purpose." Section 15-27-16 creates a criminal offense for using expunged documents "without a court order." Bullock paraphrased this section as authority for his Motion to Use Contents (Tab 6, page 1, ¶ 4). The underlined language does not, however, create a procedure for a court to allow the use of expunged documents. It creates a "safe harbor" for one who uses expunged documents pursuant to an order issued under section 15-27-6(b).

Similarly, no provision of the act authorizes a Motion to Set Aside an Expungement, such as Seier filed. An expungement "granted under such false pretenses shall be reversed," Ala. Code § 15-27-17, but the

[11]Judge Conwill cited no statutory authorization for a Motion to Use Contents of Expunged Documents.

Act does not create a procedure for obtaining a "reversal" other than a Petition for a Writ of Certiorari under section 15-27-5(c). In every other instance when "shall be reversed" or "shall not be reversed" appears in the Alabama Code concerning a court, the word "reversed" applies to action taken by an appellate court to correct the ruling of a lower court or agency - just as it does in section 15-27-5(c) (Tab 15, at 42); *cf. Levins v. State*, CR-15-612, slip op. at 5 (Ala. Crim. App. April 29, 2016) (An appeal seeks a "reversal.").

VII. The Order Is Void because the Motion and Petition Judge Conwill Granted Were Filed More Than Four Months after the Expungement.

Although neither Bullock nor Seier invoked rule 60(b), it is "[t]he only mechanism whereby a litigant may collaterally attack a civil judgment by filing a motion in the same civil action." *T.B. v. T.A.P.*, 979 So. 2d 80, 91 (Ala. Civ. App. 2007). Nevertheless, a motion to set aside a judgment for "fraud ... misrepresentation" "shall be made ... not more than four (4) months after the judgment," Ala. R. Civ. P. 60(b)(3); Ala. R. Civ. P. 60(b)(6), and "false pretenses" is a type of fraud or misrepresentation. "A trial court lacks jurisdiction to consider an untimely Rule 60(b) motion." *Noll v. Noll*, 47 So. 3d 275, 279 (Ala. Civ. App. 2010). If section 15-27-17 permits a circuit court to "reverse[]" its own expungement, then any motion to do so must be filed within four

months of the expungement.[12] As a matter of law, Bullock's Motion and Seier's Petition were filed too late. *See Greathouse v. Alfa Financial Corp.*, 732 So. 2d 1013 (Ala. Civ. App. 1999) (false certification of Mini-Code compliance subject to four-month limitation).

VIII. Judge Conwill Erred in Vacating Newsome's Expungement without a Transcript of the Proceedings before Judge Reeves.

A successor judge may not vacate the decision of his predecessor "without even considering the record or the transcript upon which the earlier decision was made." *Trail Pontiac-GMC Truck, Inc. v. Evans*, 540 So. 2d 645, 645 (Ala. 1988). As the parties seeking to set aside the earlier ruling, Bullock and Seier were "responsible for supplying the record and transcript." (*Id.* at 645-46). Judge Conwill "ha[d] not been provided with a transcript." (Tab 1, page 7, ¶ 27). Consequently, he erred in vacating the expungement.

IX. Judge Conwill Erred in Vacating Newsome's Expungement Based on "False Pretenses" - When the Facts Constituting the "Alleged False Pretenses" Were Known to Judge Reeves When He Granted the Expungement.

"False pretenses" cannot be predicated on facts known to the predecessor judge. *Yeager v. State*, 500 So. 2d 1260, 1267 (Ala. Crim. App. 1986). Judge Reeves knew that Newsome had signed the DISMISSAL & RELEASE ORDER; Newsome attached it to his petition. Judge Reeves also knew that Newsome was suing Bullock. Bullock's objection alleged

[12]Neither Bullock nor Seier filed an independent action under rule 60(b)(6). All "filings" were made under the same case number as the expungement (Tab 13, at 3-4).

that "Newsome [had] instituted ... legal action against [him] in clear contravention of his agreement." (Tab 3, at 1). Judge Conwill misapplied the law to the facts in holding that facts known to Judge Reeves were "false pretenses."

X. Judge Conwill Erred in Failing to Hold that Bullock's Motion and Seier's Petition Were Barred by Res Judicata.

Bullock objected to the expungement on the ground that he "should be able to use the expunged documents in the pending civil case." (Tab 4, at 1). He repeated this argument in his motion. He asked the court to "allow[] him ... to ... use ... the contents of the file expunged ... in [the] ongoing civil case." (Tab 6, at 3).

"[R]es judicata bars any claim that was or could have been raised at trial or on direct appeal." *Miller v. State*, 99 So. 3d 349, 354 (Ala. Crim. App. 2011). The issue of whether Bullock could use the expunged documents in Newsome's civil case "could have been raised" and was raised in the expungement. Res judicata prohibited Bullock from relitigating this issue.

Bullock also objected to the expungement because "Newsome ha[d] instituted ... legal action against [him] in clear contravention of his agreement." (Tab 3, at 1). Seier repeated this argument: "Newsome was (and remains) in direct violation of the Deferred Prosecution and Release Agreement through his prosecution of a civil action." (Tab 9, page 3, ¶ 9).

Judge Conwill's order paraphrases the objection Bullock filed before Judge Reeves. Bullock's objection stated that [1] Newsome has instituted unsuccessful legal action [2] against Mr. Bullock [3] in ... contravention of [4] his agreement (Tab 3, at 1). The order states that [1] he was concurrently prosecuting a civil suit [2] against the victim [3] in violation of [4] the Release and Dismissal Order (Tab 1, page 6, ¶ 23).

Bullock had litigated this issue and lost; res judicata barred him from relitigating it again before a different judge. Res judicata also barred Seier from relitigating this issue. Bullock "vicariously represented [Seier's] interest" at the expungement hearing (Tab 13, page 13, lines 13-14). This vicarious representation binds Seier. "If a party has a sufficient 'laboring oar' in the conduct" of the litigation, then the principle of res judicata can be actuated." *Century 21 Preferred Properties, Inc. v. Alabama Real Estate Commission*, 401 So. 2d 764, 770 (Ala. 1981).

XI. Judge Conwill Erred in Holding that Newsome Had Falsely Sworn that He Had "Fulfilled All Terms and Conditions of the Underlying Deferred Prosecution Agreement."

(a) The "terms and conditions" mentioned in section 15-27-12 are the "terms and conditions" of the programs listed in section 15-27-2(a)(4). Judge Conwill found that "Newsome did not satisfy Section 15-27-12 (Prerequisites to expungement) as to all terms and conditions of the underlying deferred prosecution agreement were not satisfied in full." (Tab 1, page 5, ¶ 22). The words "deferred-prosecution agreement" do

not appear in section 15-27-12. The "terms and conditions" that must be "satisfied" are the terms and conditions of the programs listed in section 15-27-2(a)(4). That section authorizes a court to expunge records of the defendant when "[t]he charge was dismissed after successful completion of a drug court program, mental health court program, diversion program, veterans court, or any court-approved deferred prosecution program."[13] Newsome's petition for expungement was NOT filed under section 15-27-2(a)(4); that section applies only to felonies. The Expungement Act does not require a misdemeanor defendant to sign a deferred-prosecution agreement, complete a program, or swear that he has done so.

(b) Newsome did not agree to the "terms and conditions" of a "deferred-prosecution agreement" or enter a "deferred-prosecution program." Judge Conwill held that the DISMISSAL & RELEASE ORDER was a "deferred-prosecution agreement" and that a "condition" of that agreement was that Newsome not sue anyone. (Tab 1, pages 5-6, ¶¶ 22-23). This was incorrect. Deferred-prosecution agreements have specific statutory elements; the DISMISSAL & RELEASE ORDER is not a deferred-prosecution agreement.

[13]These programs are listed in the pretrial diversion act. Ala. Code § 12-17-226.10(b)(17) ("pretrial diversion program"); Ala. Code § 12-17-226.10(b)(21) ("drug court program"); Ala. Code § 12-17-226.10(b)(23) ("mental health evaluation and treatment program"); Ala. Code § 12-17-226.10(b)(24) ("veterans" program); Ala. Code § 12-17-226.6(d) ("deferred" prosecution).

(1) Newsome did not plead guilty. A defendant who enters the "pretrial diversion program" must submit "a written plea of guilty." Ala. Code § 12-17-226.6(a)(7). The court must then "accept[] the guilty plea." Ala. Code § 12-17-226.6(d). Newsome did not plead guilty. (Tab 4).

(2) Releasing an alleged victim from "civil and criminal claims" is not an authorized "term or condition" of a deferred-prosecution agreement. Section 12-17-226.10(b) provides, "[T]he district attorney may require the offender to agree to any of the following [twenty-seven] terms and conditions." Releasing an alleged victim from "civil and criminal claims" is not an authorized "term or condition" of a deferred-prosecution agreement. Ala. Code § 12-17-226.10(b).

(3) Newsome's case was not placed on an administrative docket until he fulfilled the terms of an "agreement." Section 12-17-226.6(d) states, "[T]he court shall expressly place the case or cases on an administrative docket until the offender has fulfilled the terms of the pretrial diversion agreement." The DISMISSAL & RELEASE ORDER contained a paragraph to "place [the] case on the Administrative Docket until ____," but it was not checked. Newsome's case was not "expressly place[d] ... on an administrative docket" until he "fulfilled the terms" of an "agreement"; it was simply continued.

(4) Newsome did not participate in a "program." "Upon successful completion of the program by the offender, the district attorney shall notify the court." Ala. Code § 12-17-226.6(f). The DISMISSAL & RELEASE ORDER did not require Newsome to complete a "program."

The blank after "until" - where the "program" would be listed - was not filled in (Tab 2, at 4). The court simply dismissed the case on a predetermined date (Tab 2, at 3).

(c) Newsome did not swear that he had "satisfied" the "terms and condition" of any "agreement" or "program." Newsome was charged with misdemeanor menacing. Ala. Code § 13A-6-23. As a result, Newsome's Petition for Expungement was filed under section 15-27-1:

> (a) A person who has been charged with a misdemeanor criminal offense ... may file a petition ... to expunge the records relating to the charge in any of the following circumstances:
>
> (1) When the charge is dismissed with prejudice.

There are no other requirements - or "terms and conditions" - that a misdemeanor defendant must satisfy. The requirement that a petitioner "satisfy" the "terms and conditions" of a "deferred-prosecution program" applies only to felony defendants. Ala. Code § 15-27-2(a)(4). Uniform Judicial System Form CR-65 7/2014 confirms this. It contained a paragraph for a petitioner to swear that he had "complet[ed] ... any court-approved deferred prosecution program," but it was preceded by the words, "Non-violent Felony only." This paragraph did not apply to Newsome, and he did not check it. Newsome did not "swear" that he had "completed" any "agreement" or "program."

(d) Conclusion. In summary, the DISMISSAL & RELEASE ORDER was not a "deferred-prosecution agreement" that Newsome was

required to "fulfill[],"[14] "complet[e],"[15] or "satisf[y]."[16] Similarly, the release of "civil and criminal claims" was not a "condition" Newsome was required to "complet[e]" or "satisf[y]" after his discharge. *State v. Pali*, 129 Hawaii 363, 300 P.3d 1022, 1030 (2013) ("Petitioner's discharge ... relieved [him] of any further obligation to the Court.") (expungement).

XII. Judge Conwill Erred in Holding that the Release "Is Valid."

If the "release" is not valid, then it cannot form the basis for Judge Conwill's finding that Newsome was violating the "Agreement" or the "order" by suing Bullock (Tab 1, pages 5-6, ¶¶ 22-23; Tab 1, page 8, ¶ 27). The court erred in finding that the release "is valid."

(a) The release is unenforceable because it released "criminal claims." The DISMISSAL & RELEASE ORDER releases "all [of Newsome's] civil and criminal claims." (Tab 2, at 4). A "criminal claim" is a "criminal prosecution." *See City of Mobile v. Cooks*, 915 So. 2d 29, 32 (Ala. 2005) (referring to criminal prosecution as a "criminal claim"). An agreement to "refrain [] from seeking prosecution of a crime" is illegal. Ala. Code § 13A-10-7.

Judge Conwill held, "[E]ven assuming the validity of Defendant Newsome's argument that one clause of the Agreement (which purports to contain a release of criminal claims) is unenforceable, that clause is not at issue here" (Tab 1, pages 6-7, ¶ 25). Judge Conwill is incorrect;

[14]Ala. Code § 12-17-226.10(d).
[15]Ala. Code § 15-27-2(a)(4).
[16]Ala. Code § 15-27-12.

this is the clause on which he relied in finding that Newsome obtained his expungement under false pretenses (Tab 1, page 8, ¶ 27). If Judge Conwill meant that Newsome's criminal claims were "not at issue here," that is irrelevant.

A contract is unenforceable "if an agreement express or implied to suppress a criminal prosecution forms even a part of the consideration." *Raia v. Goldberg*, 33 Ala. App. 435, 34 So. 2d 620, 623 (1948). The provision releasing Newsome's criminal claims voided the order.

(b) The release was part of an interlocutory order that terminated when the case was dismissed. The Release is not part of an independent contract; it exists only in the DISMISSAL & RELEASE ORDER. "[I]f an agreement is merged into a judgment, only the judgment may be enforced." *Warren v. Warren*, 94 So. 3d 392, 396 n.6 (Ala. Civ. App. 2012). As a result, the "release" is not enforceable as a "contract." *Turenne v. Turenne*, 884 So. 2d 844, 849 (Ala. 2003) ("there is no claim that can be enforced on a contract theory"). The release is enforceable only if the order itself remains enforceable. But the "interlocutory order" became unenforceable upon a final judgment of dismissal. *K.L.R. v. K.G.S.*, No. 2140882 (Ala. Civ. App. Jan. 8, 2016); *Ronning v. Yellowstone County*, 360 Mont. 108, 253 P.3d 818 (2011) (plea agreement did not survive the entry of judgment); *State v. Anaya*, 95 Wn. App. 751, 976 P.2d 1251, 1256 (Wash. App. Div. 1, 1999) (no-contact order did not survive dismissal of prosecution); *State v. Feliciano*, 81 P.3d 1184 (Hawaii 2003) (restitution order did not survive expiration of probation). The

RELEASE & DISMISSAL became "unenforceable upon [the] final judgment of dismissal."

(c) The release of a defendant's "criminal claims" is not a legal sentence or punishment. Judge Conwill characterized the release as part of Newsome's sentence (Tab 1, page 7, ¶ 27). The release of "civil and criminal claims" is not a legal punishment. "The only legal punishments are fines, hard labor for the county, imprisonment in the county jail, imprisonment in the penitentiary ... and death." Ala. Code § 15-18-1 (1975). "A trial court does not have jurisdiction to impose a sentence not provided for by statute. Matters concerning unauthorized sentences are jurisdictional." *Warwick v. State*, 843 So. 2d 832, 834 (Ala. Crim. App. 2002). The court-ordered release of Newsome's "civil and criminal claims" is void.

(d) There was no evidence rebutting Newsome's claims that the release was secured by fraud and that it violated the requirements of *Rumery*. Newsome contends that the release was obtained by fraud or misrepresentation. (Tab 6, at 22-24; tab 10, at 164-65). "A release obtained by fraud is void." *Taylor v. Dorough*, 547 So. 2d 536, 540 (Ala. 1989). Neither Bullock nor Seier offered any evidence to rebut this contention. The court erred in finding that the release is "valid" without any "evidence" rebutting Newsome's fraud claim. *Underwood v. Allstate Insurance Co.*, 590 So. 2d 258, 258-59 (Ala. 1991).

Newsome also asserted that the release failed to satisfy the criteria established in *Town of Newton v. Rumery*, 480 U.S. 386 (1987). (Tab 10,

161-64; tab 15, 50-53). The proponent of a release-dismissal agreement bears the evidentiary burden of proving compliance with the three *Rumery* factors. *Coughlen v. Coots*, 5 F.3d 970, 973 (6th Cir. 1993). The DISMISSAL & RELEASE is prima facie invalid under *Rumery*. It is a Form Order executed pursuant to a "blanket policy" of requiring a "release" as a condition of a "dismissal." *Cain v. Borough*, 7 F.3d 377, 383 (3d Cir. 1993); *Kinney v. City of Cleveland*, 144 F. Supp. 2d 908, 917-18 (N.D. Ohio 2001). Bullock and Seier offered no evidence to meet their evidentiary burden.

CONCLUSION

WHEREFORE, Burton Wheeler Newsome petitions the court to grant him the following relief: (1) To take jurisdiction of this petition; (2) To issue an order forthwith requiring Mary H. Harris to accept for filing in CC 2015-000121 any document tendered by the petitioner, including any Notice of Appeal; (3) To issue a writ or order requiring the Honorable H.L. Conwill to deliver to this court and serve on the petitioner authenticated copies of all documents or records in his possession or control concerning CC 2015-000121; (4) To issue a writ or order requiring the Honorable Mary H. Harris to deliver to this court authenticated copies of all documents or records in her possession or control concerning CC 2015-000121, including records showing the docket fees or filing fees paid in the case; (5) To require the respondents to file an answer admitting or denying the allegations in the petitioner's

Statement of Facts; and (6) after review, to issue a writ or order directing the Honorable H.L. Conwill to vacate his order dated June 8, 2016, to reinstate Newsome's expungement, and to dismiss Bullock's Motion and Seier's petition; and (7) to grant Burton Wheeler Newsome such other, further, and different relief as he may be entitled to receive.

Respectfully submitted this the 13th day of July 2016

s/ G. Houston Howard II
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ATTORNEY FOR PETITIONER

CERTIFICATE OF COMPLIANCE

I hereby certify that this brief complies with the style requirements and word limitations of Alabama Rules of Appellate Procedure 21(d) and 32. This document is submitted in Century Schoolbook font, size 14, and contains 7690 words.

s/ G. Houston Howard II
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CERTIFICATE OF SERVICE

I hereby certify that I electronically filed the foregoing with the Court using the Alabama Appeals e-File system, which will send notification of such filing to all counsel of record.

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